



L'Oréal – Gucci Beauty Licence

MN-60035

Phase 1 Determination

Acquisition may be put into effect

22 September 2026

1. Determination and statement of reasons

Notified acquisition	Lake Beauté (formerly known as Kering Beauté), a wholly owned subsidiary of L'Oréal S.A. (L'Oréal), is proposing a 50-year worldwide exclusive licence (Proposed Licence or Gucci Beauty Licence) from Guccio Gucci S.p.A. (Gucci Italy) and Gucci America Inc. (Gucci America), both wholly-owned subsidiaries of Kering S.A. (Kering) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, L'Oréal, is a global company active in research, development, manufacturing, marketing, distribution and sale of beauty and personal care products. The target, Gucci Beauty Licence, is currently operated by Coty under a long-term worldwide exclusive licence agreement with Kering (through its subsidiaries Gucci Italy and Gucci America). Coty is responsible for the creation, development, manufacturing, marketing, distribution and sale of Gucci-branded beauty products worldwide and generates the corresponding commercial revenues.
Overlap between the Parties	The parties overlap in the production and supply of beauty and personal care products, in particular premium fragrances and premium colour cosmetics.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, submissions from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC finds that L'Oréal would likely continue to face competition from several alternative suppliers of premium fragrances and premium colour cosmetics in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar

	days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**